

Anil v. Bharat Bhushan Rai

High Court of Judicature at Allahabad · Single Judge · 4 December 2023 · 2023:AHC:228959 · Contempt Application (Civil) No. 8611 of 2023 · **Contempt application dismissed as misconceived.**

HEADNOTE

Contempt does not lie to compel reconnection where the writ court declined to interfere and only left the authority to process the application, after a reply to the licensee's letter, under an earlier clause 4.4 and Annexure 4.2 direction.

FACTUAL SUMMARY

Anil occupied premises at Chaubeypur, Kandipur, Varanasi as a tenant and asked the electricity department to reinstall meter no. 4608454. In Writ-C No. 15881 of 2023 the Division Bench, on 10 May 2023, told the department to decide the connection if he furnished an Annexure 4.2 indemnity bond under clause 4.4. The Executive Engineer sought documents on 9 June 2023. Anil did not answer and filed Writ-C No. 21409 of 2023, disposed of on 21 July 2023. He thereafter initiated this contempt proceeding against the Executive Engineer.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

contempt where writ only left clause 4.4 processing

HOLDING

The contempt application is misconceived. On 21 July 2023 the writ court declined to interfere and did not command reinstallation of the meter. It only observed that if the applicant answered the Executive Engineer's letter of 9 June 2023 within a week, the authority would process the connection in light of the earlier direction to decide, after hearing, once an Annexure 4.2 indemnity bond under clause 4.4 was furnished. With no mandatory order left unobeyed, no contempt was made out. ¶ 3-6

PRINCIPLE TAGS

direction-to-consider-connection-on-furnishing-4.4-or-annexure-4.2-documents The earlier writ required only that the department decide the connection after an Annexure 4.2 indemnity bond under clause 4.4 and a reply to the 9 June 2023 letter. Because the later writ declined to go further, non-reconnection was not contempt. ¶ 3-6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER ANIL IS ENTITLED TO REINSTALLATION OF METER NO. 4608454 OR TO DAMAGES UNDER THE SUPPLY CODE

Left to the authority to process the application if he answered the 9 June 2023 letter, in light of the earlier writ direction. ¶ 5-6